



Article: 23

Warrant Article Title:

BYLAW AMENDMENT / TREE PRESERVATION AND PROTECTION

Warrant Article Text:

To see if the Town will vote to amend Title V, Article 16 of the Town Bylaws (the tree preservation bylaw) to extend existing protections for trees 6 inches DBH and larger in the setback areas to include trees 10 inches DBH and larger on the rest of the lot beyond the setback. It will modify the definition of protected tree, the protections for trees not removed, and the replacement requirements for trees removed; or take any action related thereto.

Requested By:

Jennifer Cutraro and Robin Bergman and ten registered voters

Report Excerpt:

Vote and comment to Town Meeting - No Action (5-0)

The Board voted unanimously that no action be taken on this article. The Board heard from the article's proponents regarding the article's intended purpose to further the protection of trees on private land under the town's Tree Protection and Preservation Bylaw (Title V, Article 16), which applies under certain conditions when structures are demolished, expanded or constructed.

At present, the bylaw defines a "protected tree" as "any existing healthy tree on private land with a DBH of six (6) inches or greater, located in the setback area, which does not pose an immediate hazard to persons or property or is not under imminent

threat of disease or insect infestation.” This proposal would expand that definition to include all trees on private land with a DBH of ten (10) inches or greater, whether or not they are located in the property’s setback.

The Board supports the proponents’ goal of protecting more trees in Arlington but recommends no action at this time due to a need for additional information and input from vested parties, including the Department of Public Works and the Tree Committee, and further analysis of the impact that this proposal may have on property issues before the Redevelopment Board, Zoning Board of Appeals, and the Conservation Commission. It further notes that the Tree Committee is not presently endorsing the proposal, pending further study.

Vote Language:

That no action be taken on Article 23.

[Select Board Report](#)